

authorities have no bearing here. The opposition cites to no authority supportive of plaintiff's position that judicial decisions such as that at issue here can be collaterally attacked in a separate action.

Additionally, the cause of action for open book account seeks \$15,000,000 in damages. "[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.) "Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*Ibid.*) Under Government Code section 945.4, "no suit for money or damages may be brought against a public entity ... until a written claim therefore has been presented to the public entity and has been acted upon by the Board, or has been deemed to be have been denied by the Board."

The claim must be submitted to the “clerk, secretary, or auditor” or to the governing body of the public (Gov. Code, § 915) within six months of accrual of the cause of action (Gov. Code, § 911.2). The claim filing requirement applies to any lawsuit for damages against the public entity or its employees. (Gov. Code, §§ 911.2, 950.2, 945.4.)

Here, the FAC does not allege compliance with the Tort Claims Act, and the opposition does not address the issue, indicating that there is no likely effective amendment that can be made to save the claim.

Because Commissioner Green is entitled to judicial immunity, the demurrer is sustained without leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/12/26
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Ron Miller Enterprises Inc. v. Alex Delamora**
Superior Court Case No. 23CECG00856

Hearing Date: August 13, 2026 (Dept. 501)

Motion: Plaintiff's Petition to Exceed Fee Schedule

Tentative Ruling:

To grant in the reduced amount of \$10,000. (Super. Ct. Fresno County, Local Rules, Appendix A1, subd. (A)(3).) Counsel should file an amended proposed default judgment (Judicial Council Form JUD-100) consistent with this ruling within ten days of service of the minute order by the clerk.

Explanation:

The court has reviewed plaintiff's petition consistent with Fresno Superior Court Local Rules Appendix A1, subdivision (A)(3). Plaintiff's counsel has demonstrated that counsel's efforts and time in this matter warrants an award exceeding the fee schedule.

The court previously continued this matter for counsel to provide a supplemental declaration demonstrating hours worked solely in this matter and reducing a five percent overhead charge. Counsel provided the supplemental declaration which did remove the overhead charges and some, but not all, fees associated with other matters. Having reviewed counsel's billing, the court is inclined to allow for attorney's fees in the amount of \$10,000.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/12/26
(Judge's initials) (Date)